

INDEPENDENT CONTRACTOR AGREEMENT

This Independent Contractor Agreement for performance of services (the "**Agreement**"), effective as of _____ (the "**Effective Date**"), is made by and between JComm LLC Cable, LLC, a Maryland limited liability company ("**JComm LLC**" or the "**Company**"), and _____ ("**Contractor**"), an independent contractor. JComm LLC and Contractor are sometimes collectively referred to herein as the "**Parties**" and individually as a "**Party**."

ARTICLE I. SERVICES TO BE PERFORMED BY CONTRACTOR.

Specific Services

- 1.1.** Contractor, acting independently and not as an employee of JComm LLC, agrees to install cable services on behalf of JComm LLC (the "**Services**").
- 1.2.** Contractor warrants that Contractor is qualified to perform the Services and that the Services will be performed in a professional, timely, and workmanlike manner without the advice or direction of JComm LLC. Failure to perform all the Services required under this Agreement constitutes a material breach of this Agreement.

Method of Performing Services

- 1.3.** Contractor will determine the method, details, and means of performing the Services. Contractor may perform the Services under this Agreement at any suitable time and location Contractor chooses. Contractor will use Contractor's own resources, such as supplies, equipment, tools, and materials to complete the Services, unless necessity requires the use of JComm LLC' resources and/or premises.
- 1.4.** Contractor shall devote such working time and attention to the performance of the Services as required to satisfy all duties and responsibilities of Contractor in finishing the assignment.
- 1.5.** Contractor shall perform the obligations hereunder in compliance with the terms of this Agreement and all applicable laws and regulations.
- 1.6.** When Contractor is interacting with any of JComm LLC' employees, customers, vendors, affiliates or members of the public, Contractor shall comply with all of JComm LLC' company policies, including but not limited to JComm LLC' drug and alcohol policy.
- 1.7.** Contractor is responsible for the safety of Contractor and all Contractor personnel when performing the Services required under this Agreement. Contractor must provide all necessary personal protective equipment ("**PPE**"), and must submit to a monthly safety compliance check. Failure to supply, and use, the required PPE constitutes a material breach of this Agreement.

ARTICLE II. TERM OF AGREEMENT.

- 2.1. This Agreement is for an initial term of two (2) years from the Effective Date, unless terminated earlier as provided in this Agreement. This Agreement may be extended for an additional renewal period of one (1) year upon the mutual written consent of JComm LLC and Contractor.

ARTICLE III. COMPENSATION AND EXPENSES.

- 3.1. In full consideration for the Services described in this Agreement to be performed by Contractor, JComm LLC agrees to pay Contractor \$ _____ upon satisfactory completion of the terms. Payments will be made in the following manner:.....

_____. JComm LLC will hold the final check for ninety (90) days from termination of this Agreement.

- 3.2. Contractor will be responsible for all expenses incurred in performing the Services under this Agreement. Compensation paid to Contractor is in full consideration of any Services performed and any expenses incurred while performing said Services.

ARTICLE IV. KEY PROVISIONS.

Contractor is Independent Contractor

- 4.1. Contractor enters into this Agreement, and will remain throughout the term of this Agreement, as an independent contractor. Contractor agrees that neither Contractor nor any Contractor personnel is or will become an employee, partner, agent, or principal of JComm LLC while this Agreement is in effect. This Agreement does not in any way create any type of partnership, association, joint venture, or other business relationship between the Parties. Contractor agrees that neither Contractor nor any Contractor personnel shall be entitled to the rights or benefits afforded to JComm LLC's employees, including but not limited to, disability or unemployment insurance, workers' compensation, medical or life insurance, sick leave, compensation time, overtime, retirement or holiday benefits, vacation time, profit sharing, bonuses, or any other employment benefit. Contractor is responsible for providing, at Contractor's own expense, disability, unemployment, and other insurance, workers' compensation, training, permits, licenses, and any other requirement for Contractor and for Contractor's employees and subcontractors.
- 4.2. Contractor shall be exclusively responsible for directing, supervising, disciplining, discharging, or otherwise dealing with any personnel engaged by Contractor.
- 4.3. Nothing in this Agreement shall be construed to give Contractor or any Contractor personnel any authority (i) to represent that such person is an employee of JComm LLC, (ii) to bind JComm LLC with respect to contracts or

representations or any other matters, or (iii) to

represent JComm LLC before any court or government or regulatory authority without the express written authorization of JComm LLC.

Non-Exclusive Relationship

- 4.4. Contractor may represent, perform services for, and contract with as many additional clients, persons, or companies as Contractor, in Contractor's sole discretion, sees fit, provided those services do not pose a conflict of interest with the Services performed for JComm LLC. Contractor acknowledges that this is a non-exclusive engagement and that JComm LLC retains the right to appoint additional contractors as JComm LLC, in its sole and unrestricted judgment, may from time to time determine to be in the interests of JComm LLC without liability or obligation to Contractor.

Payment of Taxes and Fees

- 4.5. Contractor is solely responsible for paying when due any taxes, including estimated taxes, incurred because of the compensation paid by JComm LLC to Contractor for Services under this Agreement. This includes but is not limited to any federal, state, or local income taxes, social security or unemployment tax, or any other taxes.
- 4.6. If requested by JComm LLC, Contractor agrees to provide proof of the payment of all taxes.
- 4.7. Contractor, on behalf of [himself/herself/themselves/itself] and any successors, assigns, and heirs, agrees to defend, indemnify and hold JComm LLC, including JComm LLC's employees, officers, directors, agents, subsidiaries, and affiliates, harmless from and against any damage, claim, losses, fee, assessment, interest charge, or penalty incurred by or charged to JComm LLC as a result of any claim, cause of action, or assessment by any government agency for any nonpayment or late payment by Contractor of any tax or contribution based on compensation paid hereunder to Contractor or because JComm LLC did not withhold any taxes from compensation paid hereunder.

Workers' Compensation

- 4.8. Contractor agrees to provide workers' compensation insurance for Contractor employees and agents and agrees to defend, hold harmless, and indemnify JComm LLC for all claims arising out of any injury, disability, or death of any of Contractor's employees or agents.

Liability Insurance

- 4.9. Contractor agrees to maintain a policy of general liability insurance in the minimum amount of \$1,000,000.00 per occurrence to cover any negligent acts or errors and omissions committed by Contractor or Contractor's employees or agents during the performance of Contractor's duties and the Services under this Agreement. Contractor further agrees to indemnify and hold JComm LLC, its directors, affiliates, officers, directors, agents, partners, members, subsidiaries, successors and assigns, and any other related

persons from any claim or losses resulting from Contractor's efforts to fulfill this Agreement. JComm LLC must be listed as an additionally insured party on said policy and a copy of the policy must be forwarded to JComm LLC. Contractor may not cancel this policy

without notifying JComm LLC at least sixty (60) days in advance. Termination of required insurance constitutes a material breach of this Agreement.

Use of Employees or Subcontractors

- 4.10.** Contractor may not assign this Agreement or any duties or obligations under this Agreement without JComm LLC' express written consent. Any such assignment will be considered null and void. JComm LLC requires such consent to protect its Confidential Information (as defined below). JComm LLC will require any third-parties working on behalf of Contractor to sign confidentiality agreements prior to and as a condition of their engagement.

ARTICLE V. TERMINATION OF AGREEMENT.

- 5.1.** JComm LLC may terminate this Agreement without cause provided written notice is given to Contractor thirty (30) days in advance. JComm LLC may also terminate this Agreement immediately if Contractor breaches this Agreement. Upon an early termination, Contractor shall receive a pro-rated payment for Services actually rendered, to JComm LLC's reasonable satisfaction, prior to the termination date.

ARTICLE VI. RETURN OF MATERIALS.

- 6.1.** Upon expiration or termination of this Agreement, successful completion of the Services to be provided under this Agreement, or as otherwise requested by JComm LLC, Contractor will deliver to JComm LLC all property and materials belonging to JComm LLC in the Contractor's possession or control.

ARTICLE VII. CONFIDENTIAL INFORMATION.

- 7.1.** Contractor may gain access to confidential and proprietary information about JComm LLC and its affairs and operations. Any written, printed, graphic, spoken, or electronically or magnetically recorded information furnished by JComm LLC for Contractor's use is the sole property of JComm LLC. This proprietary information includes, but is not limited to, customer requirements, customer lists, vendor lists, contact information for vendors and customers, prospective customers, financial information, marketing information, and information concerning JComm LLC employees, products, services, prices, sources, operations and subsidiaries ("**Confidential Information**").
- 7.2.** Contractor will indefinitely maintain JComm LLC Confidential Information in the strictest confidence, and will not disclose it, or allow it to be disclosed, by any means to any person except with JComm LLC's prior, written approval, and only to the extent necessary to perform the Services under this Agreement. Any permitted person to whom Contractor shall disclose Confidential Information must be under confidentiality

obligations no less restrictive than this Agreement. Contractor shall always remain responsible for breaches of this Agreement arising from the acts of any person to whom Contractor discloses

Confidential Information. Contractor shall only use the JComm LLC Confidential Information in furtherance of Contractor's performance of this Agreement, but shall not use the Confidential Information for any other purpose or for the benefit of any third party. No Confidential Information furnished to Contractor shall be duplicated or copied except as may be strictly necessary to effectuate the purpose of this Agreement. Contractor shall promptly return all copies of Confidential Information at any time upon the request JComm LLC or promptly upon the expiration or earlier termination of this Agreement.

- 7.3. If Contractor discovers that any Confidential Information has been used, disseminated, or accessed in violation of this Agreement, Contractor will immediately notify JComm LLC; take all commercially reasonable actions available to minimize the impact of the use, dissemination or publication; and take all necessary steps to prevent any further breach of this Agreement. Contractor agrees and acknowledges that any breach or threatened breach regarding the treatment of the JComm LLC's Confidential Information may result in irreparable harm to JComm LLC for which there may be no adequate remedy at law. In such event JComm LLC shall be entitled to seek an injunction, without the necessity of posting a bond, to prevent any further breach of this Agreement, in addition to all other remedies available in law or at equity.

ARTICLE VIII. NON-SOLICITATION.

- 8.1. During the term of this Agreement and for a period of one (1) year thereafter, Contractor will not do, or cause anyone on Contractor's behalf to do, either of the following: (1) call on, solicit, or take away any of JComm LLC's customers or potential customers Contractor became aware of as a result of performing the Services under this Agreement, or (2) solicit or hire away any of JComm LLC's employees or contractors Contractor became aware of as a result of performing the Services under this Agreement.

ARTICLE IX. GENERAL PROVISIONS.

- 9.1. **Notices.** Any notices required to be given under this Agreement by either Party to the other shall be in writing and shall be transmitted either by (i) registered mail, (ii) certified mail, return receipt requested, or (iii) overnight mail (with all fees paid), addressed to the Party to be notified at the following address or to such other address or person as such Party shall specify by like notice hereunder:

JComm LLC:

329 Redbud Rd
Edgewood MD, 21040
Attention: Joshua Blair, President

Contractor:

[address]

Attention: [name or office]

- 9.2. Partial Invalidity.** If any provision of this Agreement is held by a court of competent jurisdiction to be invalid, void, or unenforceable, the remaining provisions will continue in full force and effect without being impaired or invalidated in any way.
- 9.3. Dispute Resolution.** The Parties hereby agree that any action arising out of this Agreement will be brought solely in any state or federal court located in the city of Harford County, Maryland. Both Parties hereby submit to the jurisdiction and venue of any such court. THE PARTIES FURTHER AGREE, TO THE EXTENT PERMITTED BY APPLICABLE LAW, TO WAIVE ANY RIGHT TO TRIAL BY JURY WITH RESPECT TO ANY CLAIM, COUNTERCLAIM, OR ACTION ARISING FROM THE TERMS OF THIS AGREEMENT.
- 9.4. Governing Law and Venue.** This Agreement will be governed by and construed in accordance with the laws of the Maryland without regard to its conflicts of law principles. The Parties agree that any action arising out of this Agreement will be brought solely in any state or federal court located in Harford County, Maryland. Both parties hereby submit to the exclusive jurisdiction and venue of any such court.
- 9.5. Attorney's Fees.** If either Party incurs any legal fees associated with the enforcement of this Agreement or any rights under this Agreement, the prevailing Party shall be entitled to recover its reasonable attorney's fees and any court costs and other litigation expenses from the other Party.
- 9.6. Contractor Representations.** Contractor warrants that Contractor is legally capable of entering this Agreement and that there are no other existing agreements or instruments that would impair Contractor's ability to perform the Services described in this Agreement. Contractor also warrants that any statements about Contractor's abilities or qualifications to competently complete the described Services are accurate and made in good faith. Contractor warrants that all work completed will be Contractor's original work and will not in any way legally infringe upon the rights of others.
- 9.7. Force Majeure.** Neither Party shall be liable hereunder for any failure or delay in the performance of its obligations under this Agreement if such failure or delay is on account of causes beyond its control, including labor disputes, civil commotion, war, fires, floods, inclement weather, governmental regulations or controls, casualty, government authority, strikes, pandemics, epidemics, local disease outbreaks, public health emergencies, quarantines, or acts of God, in addition to any and all events, regardless of their dissimilarity to the foregoing, deemed to render performance of the Agreement impracticable or impossible under the law, in which event the non-performing Party shall be excused from its obligations for the period of the delay and for a reasonable time thereafter. Each Party shall use reasonable efforts to notify the other Party of the occurrence of such an event within five (5) business days of its occurrence. If Contractor's performance is delayed over fifteen (15) days, JComm LLC may terminate this Agreement.
- 9.8. Waiver: Rights Cumulative.** No waiver of any term or right in this Agreement shall be effective unless in writing, signed by an authorized representative of the waiving Party.

The failure of JComm LLC to enforce any provision of this Agreement shall not be construed as a waiver or modification of such provision, or impairment of its right to enforce such provision or any other provision of this Agreement thereafter. The rights and remedies of the Parties herein provided shall be cumulative and not exclusive of any rights or remedies provided by law or equity.

9.9. Counterparts. This Agreement may be executed by facsimile and in one or more counterparts, each of which will be deemed to be an original, but all of which together will constitute one and the same instrument, without necessity of production of the others.

9.10. Entire Agreement; Modifications. This Agreement, together with any exhibits, schedules or other documents referenced herein, supersedes all agreements, either oral or written, between the Parties with respect to the rendering of Services by Contractor for JComm LLC and contains all the representations, warranties, covenants, and agreements between the Parties with respect to the rendering of those Services. Each Party to this Agreement acknowledges that no representations, inducements, promises, or agreements, orally or otherwise, have been made by any Party, or anyone acting on behalf of any Party, which are not contained in this Agreement, and that no other agreement, statement, or promise not contained in this Agreement will be valid or binding. Any modification of this Agreement will be effective only if it is in a writing signed by an authorized representative of the Party to be charged.

******signature page follows******

In witness whereof the parties hereto have executed this Agreement on the date set forth below.

CONTRACTOR

Signature:

Email:

Date: _____

JComm LLC LLC

a Maryland limited liability company

By: Joshua Blair
Name: Joshua Blair
Title: President
Date: _____